A SUMMARY OF THE ENTIRE HILCHOT SHABBAT IN 14 CLASSES

Writing and Building: Kotev and Boneh

Class 11 of 14

Series: Laws of Shabbat — a 14-part course

Shiur: 11 of 14

Topic: Kotev and Mochek (Writing and Erasing); Boneh and Soter (Building and Demolishing) — puzzles, CCTV, Lego, umbrellas, buggy hoods, cans and bottles

Recorded: Tiferet Eyal, Hendon — 26 February 2019

Schedule note: Makeh Be'Patish and Mav'ir/Mechabeh (fire, swimming, electricity) were not reached and moved to the next shiur.

Part A — Kotev and Mochek (Writing and Erasing)

In the Mishkan

The Mishkan's beams were **numbered** so each could return to exactly the same place every time it was re-erected — because of **ma'alin bakodesh ve'ein moridin**: a beam that stood nearer the Kodesh HaKodashim may not be moved to a less holy position (as worn-out tefillin straps may not become a belt). Mistakes were erased — hence Mochek.

What counts as writing

- **Drawing a picture** is Kotev — writing means creating any message, in words or images. (Colouring it in afterwards is Sove'a.)
- Torah-level only when written in the **usual manner** and **permanently**.
- **The weaker hand** — only rabbinic. This has major implications for **doctors** who must work on Shabbat — a subject in its own right, no ruling given here.
- **Temporary writing** (in sand, on a misted window, in ashes, with liquid on a table) — rabbinic.
- Tracing letters **in the air** or with a dry finger on a table — permitted; too transient to forbid.

Puzzles and bringing letters together

Doesn't completing a jigsaw "draw" a picture? Similar case: a word printed across the edge of a book's pages — closing the book "writes" it, opening it "erases" it. For Sephardim and Ashkenazim alike, this is **permitted**: writing is creating a letter, not bringing existing parts together. Likewise, putting together a torn note to read it.

- **Jigsaw puzzles are permitted** — even interlocking ones (some are stricter about those, but the logic doesn't distinguish).
- Avoid making a puzzle you intend to keep assembled for months.
- Shabbat is meant for more spiritual things than a whole afternoon of puzzles — fine for children.

- **Q: Fridge magnets** forming words? — Permitted.

CCTV

Typing letters on a computer is, almost unanimously, Torah-level writing. A camera image is different: before the shutter it is like a **mirror** — transient; once captured, it is stored as **electronic code**, not visible text — which many argue is not writing at all.

- **Walking into a place with CCTV** (shul, hospital, the Kotel security) — **permitted by all**: even if it were writing, it is an unwanted *pesik reisha* at most rabbinic.
- **Wanting to be seen** — e.g. knocking at your own door so the family inside can see you on the screen — depends on whether stored images count as writing. Practice: before Shabbat, **disconnect** it, or keep recording for security but **cover the screen** inside so no one uses it to see who is at the door. If forgotten, there is room to be lenient.
- A camera that only displays and **doesn't record** — like a mirror; no issue.

Cutting through writing — cakes and packets

Some say avoid cutting through letters on a birthday cake or packet. The halacha: **no need to be careful**, for several reasons:

1. Erasing is Torah-level only **to write in its place** — at worst this is rabbinic.
2. An unwanted *pesik reisha* in a rabbinic matter is permitted.
3. It is done in an unusual, destructive manner.

Some Ashkenazim cut between the letters; Sephardim need not.

Q: Footprints in snow, or shoes with lettering on the sole? — Transient and unintended: permitted.

Part B — Boneh and Soter (Building and Demolishing)

Lessons from the Mishkan

- **Permanent doesn't mean forever.** The Mishkan was built knowing it would be dismantled at some unknown time — it might stand two days or nineteen years (as at Kadesh). Building "for now, indefinitely" is permanent.
- **Demolishing** is Torah-level only when done in order to **rebuild**. Breaking down a door just to retrieve something is rabbinic (a person locked in — that may be pikuach nefesh; next shiur).

Forbidden building includes pitching a tent, digging a pit, **screwing** things in, and **levelling a floor** in a dwelling (earth floors, a front path) — Boneh, just as levelling a field is Choresh.

Lego, sandcastles, plasticine

- **Lego is permitted.** Like screwing a lid onto a thermos flask, something made to be constantly put together and taken apart is not "building". (Chacham Ovadia)
- **Sandcastles** — rabbinically forbidden: sand can be used for real, permanent building (like writing in sand).
- **Plasticine** — not a building problem but **smoothing** (*memare'ach*) — avoid.

Ohel — making a tent or roof

A permanent tent is a Torah prohibition; even a **temporary** roof that shelters you is rabbinically forbidden — e.g. throwing a sheet over four existing poles to make shade.

But the Gemara permits opening a **folding chair or bed** (*teraskal*), even though it creates a "tent" underneath — the tent already exists, just folded. (Laying a mattress across bare bed-frame planks, though, creates a new roof.)

Umbrellas

Is opening an umbrella like opening a folding chair? The difference: a folding bed or chair isn't opened **for shelter**; an umbrella is. **Halacha: opening a pre-existing "tent" for shade or protection is rabbinically forbidden** — so no opening umbrellas on Shabbat. An umbrella opened before Shabbat, used where there's an eruv — hard to forbid in principle, but it should still be avoided (people would think it was opened on Shabbat; and it is *uvda d'chol*, a weekday activity).

Buggy hoods and parasols

- Opening a buggy hood from fully closed creates shade — forbidden.
- Once a roof of a **tefach** (about 8 cm) exists, extending it further is permitted. So **before Shabbat, leave the hood open at least a tefach**; on Shabbat open and close it, never closing it completely.
- Opening it halfway from closed is still making a tent. You may ask a **non-Jew** to open it (some permit it outright).
- Sitting under a garden **parasol** that was already open — fine. Opening one on Shabbat — like an umbrella (ask a non-Jew). Fixed-open structures — no issue.
- A hood on your head isn't a tent — no tefach of space.

Opening cans, bottles and packets

One of the biggest subjects in Hilchot Shabbat. Six potential issues — building (creating a new vessel), demolishing, *makeh be'patish*, tearing, cutting to size, erasing. For Sephardim almost everything is permitted:

- **Building a vessel?** Not if you will throw it away; a container used only until the contents are finished is not a "kli". If you intend to **reuse** the container — forbidden.
- **Demolishing / tearing?** The Gemara permits breaking open packaging (e.g. around dates) **to get to food**; so too tearing open a milk carton.
- **Cutting to size** (pull-tab cans, perforations) — Chacham Ovadia: you don't care about the exact shape of the opening, so it is not *mechatech*. Likewise **tissue boxes** (better to open before Shabbat).

Item	On Shabbat
Tins (pickles etc.), unless you plan to reuse the tin	Permitted
Drink pouches pierced with a straw	Permitted
Ring-pull cans (Coke)	Permitted
Wine corks	Permitted
Screw-cap bottles whose seal ring breaks off (e.g. grape juice)	Strictly permitted (Chacham Ovadia: the cap existed as a cap before the ring was attached) — but good to open before Shabbat; if a non-Jew is available, ask them

Q: May an Ashkenazi who is strict ask a Sephardi to open a bottle? — Yes. Where the issue is a modern, unresolved debate (Rav Shlomo Zalman Auerbach, Rav Moshe Feinstein — not a clear Rema/Shulchan Aruch split), one strict for himself may ask another who follows the lenient view. (In yeshiva, "they always came to the Sephardim to open the bottles!") Where the rulings are clear and divided — e.g. reheating lukewarm soup, permitted to Ashkenazim but not Sephardim — one may not ask across traditions.

Tearing connected tissues apart — at the final shiur.

Summary

- **Kotev:** drawing is writing; temporary or weaker-hand writing is rabbinic; in the air is fine. Puzzles, book-edge words, fridge magnets permitted. CCTV: walking past is fine; to be seen at your door, cover the screen.
- Cutting through writing on cakes and packets is permitted.
- **Boneh:** permanent means "for now"; demolishing only Torah-level to rebuild. Lego permitted; sandcastles and plasticine not.
- **Ohel:** folding chairs fine; no opening umbrellas; buggy hoods — leave open a tefach before Shabbat.
- **Cans, bottles, packets** may be opened (unless reusing the container); grape-juice screw caps ideally before Shabbat.

Coming Up

Shiur 12 — 5 March: Medicine and non-Jews — taking medicine on Shabbat; asking a non-Jew. Also, if time allows, the remaining material: Makeh Be'Patish (folding a tallit, perfume, clapping and dancing), and Mav'ir/Mechabeh (fire, electricity, swimming). Then Muktseh, and children and babies on Shabbat.

B'Ezrat Hashem

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